

		All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney Khachatourians demonstrates good cause for granting the motion based on the allegations that there has been an irremediable breakdown in the attorney-client relationship making it unreasonably difficult to represent client. Additionally, all required judicial counsel forms (MC-051, MC-052, and MC-053) relating to the notice of motion, declaration and proposed order have been utilized and properly served. [CRC 3.1362(a)-(d). ROAS 31, 32, 33.] Although the Attorney has been unable to confirm that the address of 1710 S. Lowell Street, Santa Ana CA 92707 is current, Attorney mailed the motion papers, return receipt requested, called the client's last known telephone number, conducted a search through "The Last One" and emailed the client at jaycortesab@gmail.com. It appears these addresses are sufficient, but Plaintiff is simply unresponsive. Therefore, the motion is GRANTED. Attorney Arlen Khachatourians shall be relieved as counsel of record upon filing the proof of service of the order. Moving party to give notice.
104	Dash v. Capistrano USD 2026-01538730	MOTION TO STRIKE (ANTI-SLAPP) - DENIED Defendant Capistrano Unified School District's ("CUSD") Special Motion to Strike (Anti-SLAPP) is DENIED. "Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit. If the plaintiff cannot make this showing, the court will strike the claim." (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 (Bonni) (internal citations omitted).)

		In determining whether the plaintiff's claims arise from protected activity, "courts are to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (Ibid. (internal citations omitted).) The anti-SLAPP statute identifies four categories of protected activity. (CCP § 425.16, subd. (e)(1)–(4).) CUSD invokes two of them. Section 425.16, subdivision (e)(2) protects "any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law." Subdivision (e)(4) covers "any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." Plaintiffs' complaint asserts causes of action for: (1) Sex Discrimination in Violation of FEHA; (2) Retaliation in Violation of FEHA; (3) Failure to Prevent Discrimination, Retaliation, and Harassment in Violation of FEHA; (4) Whistleblower Retaliation in Violation of Cal. Labor Code 1102.5; (5) Wrongful Termination in Violation of Public Policy; (6) Breach of Implied-in-Fact Contract Not to Terminate Employment Without Cause; (7) Breach of Express Oral Contract Not to Terminate Employment Without Good Cause; (8) Negligent Hiring, Supervision and Retention of an Employee; and (9) Intentional Infliction of Emotional Distress. CUSD contends that all of Plaintiffs' causes of action are based upon CUSD's investigation of parent complaints about Plaintiffs' conduct and that public entity internal investigations are official proceedings authorized by law, subject to anti-SLAPP protection. (Mtn. at 10:17-19.) In opposition, Plaintiffs contend that the gravamen of their claims is CUSD's allegedly discriminatory decision to terminate
--	--	---

		Plaintiffs’ employment—not the investigation. (Oppn. at 1:16-18.) Neither party appears to dispute that the investigation is protected conduct. “A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062 (Park).) “A claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted. The mere fact that an action or claim was filed after protected activity took place does not mean the action or claim arose from that activity for the purposes of the anti-SLAPP statute.” (Verceles v. Los Angeles Unified School District (2021) 63 Cal.App.5th 776, 784 (citing Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884 (Wilson); Park, at p. 1060).) Further, “[t]he ‘elements’ analysis as articulated by the Supreme Court in Park, supra, 2 Cal.5th at page 1063 . . . and adopted in Wilson, supra, 7 Cal.5th at page 884 . . . , does not mean any allegation of protected activity supporting an element of a cause of action subjects that cause of action to a challenge under section 425.16.” (Verceles, supra, at p. 786.) <u>First through Seventh Causes of Action</u> Here, Plaintiffs’ first through seventh causes of action for discrimination, retaliation and breach of contract arise from the alleged wrongful act of terminating Plaintiffs’ employment. (See Compl. ¶¶ 32, 41, 48, 58, 67, 73, 77.) For each of these claims, Plaintiffs allege that the wrongful act by CUSD was their termination—not the investigation of parents’ complaints. While the first cause of action for gender discrimination additionally alleges that Plaintiff Jenkins was subjected to “disparate discipline,” there are no factual allegations to suggest that the investigations were considered discipline. Rather, the factual allegations detail how, after the various investigatory meetings, Plaintiff Jenkins was informed that she did nothing wrong, was praised for
--	--	---

		her performance, and that CUSD did not discipline Plaintiffs. (Compl. ¶¶ 16-17, 21, 24.) Thus, this claim is based exclusively on wrongful termination. Similarly, there are no factual allegations to support the allegation in the fourth cause of action for failure to prevent discrimination, retaliation and harassment in Violation of FEHA, that Plaintiffs were “targeted by gender-based complaints” attributed to CUSD. The only gender-based complaints alleged were those by parents. (See Compl. ¶¶ 14, 19, 23.) Thus, the fourth cause of action is also based exclusively on the wrongful termination of Plaintiffs. In <i>Wilson v. Cable News Network, Inc.</i>, the California Supreme Court addressed the “growing divide over whether, in an employment discrimination or retaliation case, the employer’s alleged motive to discriminate or retaliate eliminates any anti-SLAPP protection that might otherwise attach to the employer’s employment practices.” (<i>Wilson</i>, supra, 7 Cal.5th at 883.) The <i>Wilson</i> court concluded that “to carry its burden at the first step, the defendant in a discrimination [or retaliation] suit must show that the complained-of adverse action, in and of itself, is an act in furtherance of its speech or petitioning rights. Cases that fit that description are the exception, not the rule.” (<i>Id.</i> at 890.) Here, CUSD does not argue that the act of terminating Plaintiffs’ employment, in and of itself, constitutes protected activity. Instead, citing <i>Jeffra v. California State Lottery</i>, CUSD contends that the wrongful termination in this case is inextricably intertwined with the investigation, such that the claims arise from protected activity. (<i>Jeffra v. California State Lottery</i> (2019) 39 Cal.App.5th 471.) However, <i>Jeffra</i> is distinguishable because in that case, the employer’s investigation was the complained-of wrong. In <i>Jeffra</i>, the plaintiff alleged that his employer, the California State Lottery, “engaged in a pretextual investigation, ultimately forcing him to retire, after he filed a whistleblower complaint with the California State Auditor.” (<i>Id.</i> at 474.) Further, <i>Jeffra</i>’s analysis has been called into
--	--	---

		question as inconsistent with the framework delineated by the California Supreme Court in <i>Park</i>. (See <i>Verceles</i>, supra, 63 Cal.App.5th at p.788.) In contrast to <i>Jeffra</i>, the complained of wrong in this case is the termination of Plaintiffs’ employment—not the fact that Defendant investigated Plaintiffs’ conduct. As the first through seventh causes of action do not arise from protected speech or conduct, the Court need not reach the second prong of the analysis as to those causes of action. Accordingly, the motion is DENIED as to the first through seventh causes of action. <u>Eighth Cause of Action for Negligent Hiring, Supervision or Retention of Employee</u> A school district may be held vicariously liable pursuant to Government Code section 815.2 for the negligence of supervisory or administrative personnel who allegedly knew, or should have known, of an employee’s propensities and nevertheless hired, retained and inadequately supervised him. (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 865.) Plaintiffs’ eighth cause of action for negligent hiring, supervision or retention of employee alleges that CUSD knew or should have known that principal Brad Baker had become unfit to perform the work for which he was hired, and that his unfitness created a risk to female employees including Plaintiff Jenkins. (Compl. ¶¶ 80-82.) Specifically, “CUSD continued to appease the complaining parents and subject Plaintiffs to unjustified questioning and ultimately wrongful termination.” (Compl. ¶82.) Thus, this claim arises, in part, from the protected activity of the investigation. Plaintiffs contend they suffered economic loss and emotional distress as a result. (Compl. ¶ 85.) Analysis of an anti-SLAPP motion is not confined to evaluating whether an entire cause of action, as pleaded by the plaintiff, arises from protected activity or has merit. Instead, courts should analyze
--	--	---

		each claim for relief — each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action — to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion. (Bonni, <i>supra</i>, 11 Cal.5th at p. 1010.) Insofar as Plaintiffs’ negligence claim is based on harm arising from being subjected to unjustified questioning, the burden shifts to Plaintiffs to show that the claim has at least minimal merit. “At this stage, the court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a <i>prima facie</i> factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law.” (Wilson <i>supra</i>, 7 Cal.5th at p. 891.) In this regard, Plaintiffs present their declarations, and contend that “CUSD knew, or at minimum should have known, of Principal Baker’s unfitness and nevertheless failed to take any meaningful action to prevent the discriminatory conduct that culminated in Plaintiffs’ wrongful termination. CUSD’s own investigations cleared both Plaintiffs of wrongdoing and affirmatively demonstrated its recognition that the complaints were unsupported and the parents were problematic. (Jenkins Decl. ¶¶ 11-25, Dash Decl. ¶ 6, 15-24.)” In reply, CUSD contends that Plaintiffs have presented no evidence that Principal Baker was unfit for his position. CUSD contends that Plaintiffs’ evidence shows that Principal Baker was not breaching his duty by investigating parent complaints about Plaintiffs—even if they turned out to be false—rather, he was fulfilling his duty as a principal. CUSD offers the declaration of Principal Baker in support of its argument.
--	--	---

		Plaintiffs have made a prima facie factual showing as to this cause of action, which is not negated as a matter of law by CUSD’s showing. Accordingly, the motion is DENIED as to the eighth cause of action. <u>Ninth Cause of Action for Intentional Infliction of Emotional Distress</u> In their ninth cause of action for intentional infliction of emotional distress, Plaintiffs allege that CUSD engaged in intentional and outrageous conduct toward Plaintiffs because CUSD “repeatedly legitimized and acted upon discriminatory parent complaints despite having acknowledged that those complaints were unwarranted and that Plaintiffs’ performance was satisfactory. By giving credence to these unsupported complaints, [CUSD] forced Plaintiffs to repeatedly defend Plaintiff Jenkins’ involvement with the boys’ wrestling team against bigoted, gender-based animus rather than any objective, performance-based criteria.” (Compl. ¶87.) Plaintiffs further allege that CUSD intended to cause Plaintiffs’ emotional distress by and through their outrageous conduct, and that Plaintiffs suffered severe emotional distress as a result. (Compl. ¶¶ 88-89.) This claim arises from CUSD’s investigations. Intentional infliction of emotional distress requires (1) “outrageous” conduct by the defendant, (2) that the defendant intend to cause (or recklessly disregard the probability of causing) emotional distress, (3) severe emotional distress and (4) causation. (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1225–1226.) Plaintiffs have made a minimal showing of merit by presenting evidence in their declarations that they were repeatedly brought into meetings to be questioned over the same parent complaints, even though CUSD repeatedly found the complaints without merit. At the same time, Plaintiffs’ complaints to CUSD, that the parents’ complaints were driven by discriminatory animus, were ignored,
--	--	--

		causing Plaintiffs severe emotional distress. (Dash Decl. ¶¶ 4-6; 14-24; Jenkins Decl. ¶¶ 11-2.) CUSD contends that, as a government actor, it is immune from liability for intentional torts. In opposition, Plaintiffs correctly contend that, pursuant to Government Code §815.2, a public entity may be liable for the torts of its employees committed within the scope of their employment, as long as the employees themselves are not immune. (See <i>Lawson v. Superior Court</i> (2010) 180 Cal.App.4th 1372, 1385.) CUSD also contends that the conduct alleged is not sufficiently extreme and outrageous to support the claim. “Outrageous” conduct is that which is so extreme that it exceeds all bounds usually tolerated in a civilized society. (<i>Angie M.</i>, supra, 37 Cal.App.4th at p. 1226.) If Plaintiffs’ allegations are proven, reasonable minds could differ as to whether repeated formal interrogations of Plaintiffs regarding concededly meritless complaints—in a context where Plaintiffs feared for their employment—constitutes outrageous conduct. Accordingly, the motion is DENIED as to the ninth cause of action. Defendant to give notice.
107	Favero v. California Friends Homes 2025-01520569	MOTION TO COMPEL ARBITRATION - GRANTED Defendant, California Friends Homes dba Rowntree Gardens (“Rowntree Gardens”), moves for an order staying the present action and compelling contractual binding arbitration pursuant to an Arbitration Agreement. This case was filed by Plaintiff against Rowntree Gardens asserting claims for: (1) statutory elder abuse/dependent adult/neglect in violation of Welfare & Institutions Code §§ 15600 et seq, (2) negligence, and (3) violation of Patient’s Bill of Rights/Health & Safety Code § 1430. Rowntree Gardens contends that this action against Rowntree Gardens should be stayed and compelled to arbitration under the Federal Arbitration Act (“FAA”), 9 U.S.C. §§ 2-4,